

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE CREATING CHAPTER 12.28, DOWNTOWN GRAFFITI ABATEMENT PILOT PROGRAM, OF TITLE 12, STREETS, SIDEWALKS AND PUBLIC PLACES, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, AND PROVIDING PROCEDURES FOR THE OPERATION THEREOF."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That a new Chapter 12.28, Downtown Graffiti Abatement Pilot Program, of Title 12, Streets, Sidewalks and Public Places, of the Municipal Code of the City of Cheyenne, Wyoming, is hereby created as set out in this ordinance.

Chapter 12.28

DOWNTOWN GRAFFITI ABATEMENT PILOT PROGRAM

12.28.010 Creation.

There is hereby created the "Downtown Graffiti Abatement Pilot Program" (Pilot Program).

12.28.020 Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter:

A. "Downtown Development Authority" (DDA) means the body corporate created by the City of Cheyenne pursuant to Chapter 2.76 of the Municipal Code of the City of Cheyenne.

B. "Graffiti" means any unauthorized inscription, word, figure, painting or other defacement that is written, marked, etched, scratched, sprayed, drawn, painted or engraved on or otherwise affixed to any surface or public or private property, to the extent that the graffiti was not given written authorization in advance by the property owner, or, despite written advance authorization, is otherwise deemed a public nuisance by the Downtown Development Authority.

C. "Property" means any real property, including structures and fixtures.

D. "Property Owner" means a person, real or corporate, partnership or other business venture owning any property within the boundaries of the downtown development district as set forth in Section 2.76.040.

E. "Structure" means any improvement to real property and shall include, but not be limited to, buildings, walls, doors, utility boxes, sidewalks, windows, fixtures, sheds, storage units, semi-tractor trailers, mobile storage and masonry.

12.28.030 Prohibited Acts.

It shall be unlawful for any person to apply graffiti to any natural or man-made surface on any city-owned property or, without the permission of the property owner on any non-city-owned property.

12.28.040 Program Creation and Opt-Out~~Out~~In.

A. The DDA shall develop and implement the Pilot Program inside the boundaries of the downtown development district designated in Section 2.76.040.

B. The Pilot Program shall include at least the following elements:

1. Written notification sent to all property owners by certified mail of the scope and operation of the Pilot Program;

2. An option to opt-out~~in to~~ the Pilot Program by responding in writing to the DDA within thirty (30) days of the postmarked date of the DDA's written notification of the Pilot Program. Any property owner failing to respond to the DDA's notice as set forth in this section is presumed to ~~consent to~~ **not be included** in the Pilot Program; and

3. A property owner's ~~failure to respond to the opt-out notice~~ **choice to opt-in** to of the Pilot Program as set forth above shall be deemed a release of the City and DDA from liability for property damage and personal injury as it relates to graffiti abatement performed in accordance with the provisions of this chapter.

4. **All property owners failing to respond to the notice to opt-in, or those that explicitly opt-out of the Pilot Program shall be exempted from participation therein and the DDA shall not abate any graffiti appearing on their property.**

C. Written notification to all property owners shall be addressed to the mailing address of the property owner as identified by the Laramie County Tax Assessor on the Laramie County Cooperative GIS interactive parcel map site.

12.28.050 Removal of Graffiti by DDA.

A. Whenever the DDA determines that graffiti exists within the boundaries of the downtown development district on property **belonging to property owners that opted in to the Pilot Program** which is visible to the public, the DDA may remove such graffiti to the extent allowed within their annual line item budget.

B. Graffiti may be removed **from publicly owned property and privately owned property belonging to property owners that opted in to the Pilot Program** pursuant to the following provisions:

1. Use of Public Funds. Whenever the DDA becomes aware or is notified and determines that graffiti is located on publicly or privately owned property viewable from a public or quasi-public place, the DDA shall be authorized to use DDA funds for the removal of the graffiti, or for the painting over, power cleaning, or repairing of the graffiti, but is not authorized to provide for the painting or repair of any more extensive an area than where the graffiti is located.

2. Right of Entry on Private Property. All property located within the boundaries of the downtown development district owned by property owners who ~~fail to opt-out of~~ **in to** the Pilot Program as set forth in Section 12.28.03~~40~~ will be subject to graffiti abatement by the DDA.

3. The DDA may only abate graffiti existing on property within the downtown development district owned by property owners who ~~did not opt-out of~~ **in to** the Pilot Program.

4. No graffiti determined to exist on property owned by property owners who elect to opt-out of the Pilot Program **or who fail to respond to the DDA's notice as set forth in Section 12.28.040** shall be abated by the DDA.

Section 2. This ordinance shall be in full force and effect upon its approval and publication.

Section 3. This Pilot Program shall be automatically terminated unless renewed by the Governing Body prior to November 1, 2020. In the event the Governing Body fails to renew the Pilot Program, this ordinance shall cease to be of any further force or effect.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

Marian J. Orr, Mayor

(SEAL)
Attest:

Kristina F. Jones, City Clerk

Publish: Wyoming Tribune Eagle